

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

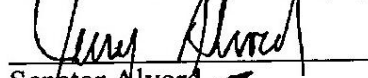
I move to amend Senate Bill No. 378, by substituting the attached floor substitute (Request # 3641) for the title, enacting clause and entire body of the measure.

Submitted by:


Senator Gollihare

I hereby grant permission for the floor substitute to be adopted.


Senator Coleman, Chair (required)

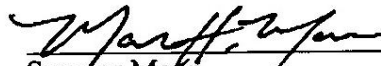

Senator Alvord


Senator Brooks

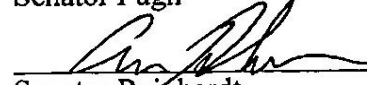
Senator Grellner

Senator Guthrie

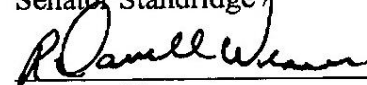
Senator Paxton, President Pro Tempore


Senator Mann

Senator Pugh


Senator Reinhardt

Senator Standridge


Senator Weaver

Senator Daniels, Majority Floor Leader

Note: Business and Insurance committee majority requires six (6) members' signatures.

SB 378 CAD
Gollihare-CAD-FS-SB1039
2/12/2026 12:14 PM

(Floor Amendments Only)

Date and Time Filed: 3-17-26 9:44am jd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 378

By: Gollihare of the Senate

and

Pfeiffer of the House

FLOOR SUBSTITUTE

An Act relating to bail bondsmen; amending 59 O.S. 2021, Section 1306.1, which relates to multicounty agent bondsmen applications; allowing Insurance Commissioner to approve certain bondsman to write bonds over certain deposit amount; allowing Commissioner to limit written bond amount; prohibiting Commissioner from releasing certain deposit for certain time period under certain circumstances; allowing Commissioner to reduce certain deposit bond amount written over certain deposit amount; requiring Commissioner to provide certain notice; updating statutory language; updating statutory reference; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1306.1, is amended to read as follows:

Section 1306.1. A. 1. An applicant for a multicounty agent bondsman license shall have been continually licensed as a professional bondsman in ~~the State of Oklahoma~~ this state for a

1 minimum of two (2) years without suspension or having any unpaid
2 forfeitures prior to the date of application.

3 2. In addition to the requirements prescribed in Sections 1305
4 and 1306 of this title, an applicant for a multicounty agent
5 bondsman license shall submit to the Insurance Commissioner an
6 annual audited financial statement prepared by an accounting firm or
7 individual holding a permit to practice public accounting in this
8 state in accordance with the Statements on Auditing Standards
9 promulgated by the Auditing Standards Board of the American
10 Institute of Certified Public Accountants setting forth the total
11 assets of the bondsman less liabilities and debts. For initial
12 applications and for subsequent renewals of the license, the
13 statement shall show a net worth of at least Two Hundred Fifty
14 Thousand Dollars (\$250,000.00). The statement shall be current as
15 of a date not earlier than ninety (90) days prior to submission of
16 the application and the statement shall be attested to by an
17 unqualified opinion of the accountant.

18 3. Multicounty agent bondsman applicants shall make a deposit
19 with the ~~Insurance~~ Commissioner in the same manner as required of
20 domestic insurance companies. The deposit shall not be less than
21 One Hundred Thousand Dollars (\$100,000.00). Provided, however, any
22 and all deposits made pursuant to paragraph 3 of subsection A of
23 Section 1306 of this title shall count toward the fulfillment of any
24 deposit amount required by this section. The deposit shall be

1 subject to all laws, rules, and regulations as deposits by domestic
2 insurance companies but in no instance, except as provided ~~herein~~ in
3 this paragraph, shall a multicounty agent bondsman write bonds which
4 equal more than twelve (12) times the amount of the deposit which
5 the bondsman has submitted to the Commissioner; provided, however,
6 any currently licensed professional bondsman in good standing with
7 the Insurance Department and who, on ~~the effective date of this act~~
8 July 1, 2014, meets the provisions of the grandfather clause set
9 forth in Section 1306 of this title and who otherwise meets the
10 requirements of this section shall be afforded the same liability
11 ratio as that of such grandfathered professional bondsman. The
12 Commissioner may approve a multicounty agent bondsman to write bonds
13 over twelve (12) times the amount of the deposit but not more than
14 fifteen (15) times the amount of the deposit. Such deposit shall
15 require the review and approval of the ~~Insurance~~ Commissioner prior
16 to exceeding the maximum amount of Federal Deposit Insurance
17 Corporation basic deposit coverage for any one bank or financial
18 institution. In addition, a multicounty agent bondsman may make the
19 deposit by purchasing an annuity through a licensed domestic
20 insurance company in ~~the State of Oklahoma~~ this state. The annuity
21 shall be in the name of the bondsman as owner with legal assignment
22 to the ~~Insurance~~ Commissioner. The assignment form shall be
23 approved by the Commissioner. If a bondsman exceeds the above
24 limitation, the bondsman shall be notified by the Commissioner that

1 the excess shall be reduced or the deposit increased within ten (10)
2 days of notification, or the license of the bondsman shall be
3 suspended immediately after the ten-day period, pending a hearing on
4 the matter.

5 4. The deposit provided for in this section shall constitute a
6 reserve available to meet sums due on forfeiture of any bonds or
7 recognizance executed by the bondsman.

8 5. Any deposit made by a multicounty agent bondsman pursuant to
9 this section shall be released and returned by the Commissioner to
10 the multicounty agent bondsman only upon extinguishment of all
11 liability on outstanding bonds. Provided, however, the Commissioner
12 shall have the authority to review specific financial circumstances
13 and history of a multicounty agent bondsman, on a case-by-case
14 basis, and may release a portion of the deposit if warranted. If a
15 multicounty agent bondsman has increased his or her writing capacity
16 to over twelve (12) times the amount of the deposit, the
17 Commissioner shall not release a portion of the deposit for at least
18 two (2) years following the approval of the increased writing
19 capacity. If the multicounty agent bondsman has had any
20 administrative action in the previous two (2) years, the
21 Commissioner may deny such application. If the multicounty agent
22 bondsman has two administrative actions after the application is
23 approved, the liability ratio may be immediately reduced to twelve
24 (12) times the amount of the deposit. The Commissioner shall

1 provide electronic notice to the multicounty agent bondsman when the
2 ratio is automatically reduced. The Commissioner may promulgate
3 rules to effectuate the provisions of this paragraph.

4 6. No release of deposits to a multicounty agent bondsman shall
5 be made by the Commissioner except upon written application and the
6 written order of the Commissioner. The Commissioner shall have no
7 liability for any such release to a multicounty agent bondsman
8 provided the release was made in good faith.

9 B. The deposit provided in this section shall be held in
10 safekeeping by the ~~Insurance~~ Commissioner and shall only be used if
11 a bondsman fails to pay an order and judgment of forfeiture after
12 being properly notified or shall be used if the license of a
13 multicounty agent bondsman has been revoked. The deposit shall be
14 held in the name of the ~~Insurance~~ Commissioner and the bondsman.
15 The bondsman shall execute an assignment or pledge of the deposit to
16 the ~~Insurance~~ Commissioner for the payment of unpaid bond
17 forfeitures.

18 C. Notwithstanding any other provision of Sections 1301 through
19 1341 of this title, the license of a multicounty agent bondsman is
20 transferable upon the death or legal or physical incapacitation of
21 the bondsman to the spouse of the bondsman or to such other
22 transferee as the multicounty agent bondsman may designate in
23 writing, and the transferee may elect to act as a multicounty agent
24

1 bondsman for a period of one hundred eighty (180) days if the
2 following conditions are met:

3 1. The transferee shall hold a valid license as a surety
4 bondsman in this state; and

5 2. The asset and deposit requirements set forth in this section
6 continue to be met.

7 At the end of the one-hundred-eighty-day period, the transferee
8 shall be allowed to apply for a license as a multicounty agent
9 bondsman, provided he or she has been continually licensed as a
10 surety bondsman for at least five (5) years immediately prior to the
11 date of application, notwithstanding the requirements of paragraph 1
12 of subsection A of this section.

13 D. A multicounty agent bondsman may appoint by power of
14 attorney a licensed surety bondsman as his or her agent to execute
15 bail bonds within any county in ~~the State of Oklahoma~~ this state.
16 The number of bail bonds a multicounty agent bondsman may insure in
17 counties other than the county he or she registers his or her
18 license, pursuant to subsection A of Section 1320 of this title,
19 shall not be limited by subsection B of Section 1320 of this title.

20 SECTION 2. This act shall become effective November 1, 2026.

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22 60-2-3641 CAD 3/17/2026 10:11:41 AM

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